

21TRCV00051 21TRCV00051

County: los-angeles

Division: Civil Law and Motion

Department: 5

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Case Number: 21TRCV00051 Hearing Date: July 1, 2026 Dept: 5

Superior Court of California

County of Los Angeles – SOUTHWEST District

Department

5

palos verdes bay club, inc.

;

Plaintiff,

vs.

CONSTRUCTION

SERVICE GROUP INC DBA HUNT BROS ROOFING.

, et al.;

Defendant.

Case

No.:

21TRCV00051

Hearing

Date:

July
1, 2026

Time:

8:30 a.m.

[tentative]

Order RE:

(1)

DEFENDANT

NATIONAL ROOFING CONSULTANTS, INC.'S MOTION FOR SUMMARY JUDGMENT OR SUMMARY
ADJUDICATION OF ISSUES

MOVING PARTY: Defendant, National Roofing
Consultants, Inc.

RESPONDING

PARTY: Plaintiff, Palos Verdes Bay
Club, Inc.

(1)

Defendant

National Roofing Consultants, Inc.'s Motion for Summary Judgment or Adjudication of Issues is DENIED pursuant to Code of
Civil Procedure 437c.

The Court considers the moving papers filed on March 11, 2026, the
opposition brief filed on June 11 and 12, 2026, and the reply brief filed on June
16, 2026.

BACKGROUND

Factual Background

On January 25, 2021, plaintiff
Palos Verdes Bay Club, Inc. ("Plaintiff") filed the Complaint against
Construction Service Group Inc. doing business as Hunt Bros Roofing, Bradley

Hunt, National Roofing Consultants, Inc., and DOES 1 through 25.

On May 12, 2021, Plaintiff filed the First Amended Complaint against Construction Service Group Inc. dba Hunt Bros Roofing, National Roofing Consultants, Inc., Antis Roofing and Waterproofing, LLC, and DOES 2 through 25.

On July 6, 2021, Plaintiff filed the Second Amended Complaint ("SAC") against Construction Service Group Inc. dba Hunt Bros Roofing, Bradley Hunt, National Roofing Consultants, Inc., Antis Roofing and Waterproofing, LLC, and DOES 2 through 25. The SAC includes the following causes of action: (1) Negligence and (2) Breach of Implied Warranties.

On July 28, 2021, the parties filed a stipulation to allow James River Insurance Company to file an answer in intervention. The Court signed the stipulation on the same day.

On September 2, 2021, National Roofing Consultants, Inc. filed a cross-complaint against cross-defendants Construction Service Group Inc. dba Hunt Bros Roofing, Antis Roofing and Waterproofing, LLC, and DOES 1 through 10. The cross-complaint included the following causes of action: (1) Indemnification; (2) Apportionment of Fault; and (2) Declaratory Relief.

On November 1, 2021, the parties filed a stipulation to allow certain underwriters at Lloyd's London to file an answer in intervention. The Court signed the stipulation on the same day.

On August 12, 2022, National Roofing Consultants, Inc. dismissed its cross-complaint without prejudice.

On August 30, 2022, the Court dismissed Bradley Hunt from the SAC without prejudice at Plaintiff's oral request.

On June 5, 2023, Plaintiff amended the SAC to name Broadstreet Energy Corp. as DOE 2. On the same day, Plaintiff filed another amendment to the SAC, naming Regen America Inc. as DOE 3.

On August 30, 2023, the Court
entered a default against Broadstreet Energy Corp.

On October 30, 2023,
Plaintiff amended the SAC to name M. Roy Nelson, Inc. doing business as Horizon
Management Company as DOE 4.

On January 16, 2024,
Plaintiff dismissed M. Roy Nelson, Inc. dba Horizon Management Company without
prejudice.

On May 30, 2024, Regen
America Inc. filed the cross-complaint against cross-defendants Palos Verdes
Bay Club, Inc., Antis Roofing & Waterproofing, LLC, and DOES 1 through
100. The cross-complaint includes the
following causes of action: (1) Breach of Contract; (2) Open Book Account; (3)
Account Stated; (4) Quantum Meruit; (5) Conversion; (6) Indemnification; (7)
Contribution; (8) Apportionment of Fault; and (9) Declaratory Relief.

On July 8, 2025, February 18,
2026, and May 26, 2026, the parties filed joint stipulations waiving and
extending the five-year statute of limitations for bringing the case to trial.

EVIDENTIARY OBJECTIONS

Plaintiff's Objections to the Declaration of Mark Clonts

Objection 3 and 6 - SUSTAINED

Objections: 1, 2, 4, and 5 - OVERRULED

Plaintiff's Objections to the Exhibits

Sustain:

Exhibit 6
and 7: SUSTAINED (Hearsay)

Overrule:

N/A.

REQUEST FOR JUDICIAL NOTICE

NRC Request

for Judicial Notice pursuant to Evidence Code Section 452 (d) is GRANTED, for the following:

1. Plaintiff's
Complaint; and

2. Plaintiff's
Second Amended Complaint.

However, the Court will not take judicial notice of the truth of the matters presented in these documents since they are subject to interpretation. (See *L.B. Research & Education Foundation v. UCLA Foundation* (2005) 130 Cal.App.4th 171, 180, fn. 2, citing *Comings v. State Bd. of Education* (1972) 23 Cal.App.3d 94.)

LEGAL STANDARD

"A party may move for summary judgment in an action or proceeding if it is contended that the action has no merit or that there is no defense to the action or proceeding." (Code Civ. Proc., § 437c, subd. (a)(1).) "A cause of action has no merit if either of the following exists: (1) One or more of the elements of the cause of action cannot be separately established, even if that element is separately pleaded. (2) A defendant establishes an affirmative defense to that cause of action." (Code Civ. Proc., § 437c, subd. (o).)

"On a motion for summary judgment, the initial burden is always on the moving party to make a prima facie showing[.]" (*Scalf v. D.B. Log Homes, Inc.* (2005) 128 Cal.App.4th 1510, 1519.) A defendant or cross-defendant moving for summary judgment or summary adjudication "has met his or her burden of showing that a cause of action has no merit if the party has shown that one or more elements of the cause of action ... cannot be established, or that there is a complete defense to the cause of action." (Code Civ. Proc.,

§ 437c, subd. (p)(2).)

“Once the defendant or cross-defendant has met that burden, the burden shifts to the plaintiff or cross-complainant to show that a triable issue of one or more material facts exists as to the cause of action or a defense thereto.” (Code Civ. Proc., § 437c, subd. (p)(2).) “If the plaintiff cannot do so, summary judgment should be granted.” (Avivi v. Centro Medico Urgente Medical Center (2008) 159 Cal.App.4th 463, 467.) “When deciding whether to grant summary judgment, the court must consider all of the evidence set forth in the papers (except evidence to which the court has sustained an objection), as well as all reasonable inferences that may be drawn from that evidence, in the light most favorable to the party opposing summary judgment.” (Id. at p. 467; Code Civ. Proc., § 437c, subd. (c).)

DISCUSSION

NRC asserts that “Plaintiff’s action is barred by an express contractual limitation requiring that any claim against NRC be asserted within one year after completion of NRC’s services[,]” and that “Plaintiff’s action is further barred due to the contractual waiver of claims against NRC for the nature of the claims asserted by Plaintiff against NRC.” (MSJ, p. 2:4-5, 11-12.) However, NRC failed to reference any undisputed material facts or supporting evidence in its legal argument as statutorily required. (MSJ, pp. 5:20-9:7.)

Although NRC’s moving papers outline the facts that it claims are relevant to its argument, NRC fails to apply these facts with relevant citations to its arguments. Instead, NRC merely refers to the alleged facts without citing the undisputed material facts or the evidence that supports them within the meaning of Code of Civil Procedure Section 437c(b)(1). This approach places an undue burden on the Court to sift through the evidence and material facts in order to evaluate NRC’s arguments. Furthermore, this issue is exacerbated by the fact that the Court has sustained objections to NRC’s evidence.

Although it is conceivable that evidence exists to negate Plaintiff’s claims, NRC’s moving papers do not properly marshal that evidence to demonstrate that Plaintiff cannot prevail on its claims. “Courts are entitled to assistance from counsel, and an invitation to search without guidance is no more useful than a litigant’s request to a district court at the summary judgment stage to paw through the assembled discovery material. ‘Judges are not like pigs, hunting for

truffles buried in' the record. [Citation]."

(Albrechtsen v. Board of Regents of
University of Wisconsin System (7th Cir. 2002) 309 F.3d 433, 436.)

NRC has not carried its initial burden to demonstrate that Plaintiff's
claims lack merit because it has not applied the putative material facts and evidence,
along with the necessary citations.

Thus, the Court will refrain from analyzing whether Plaintiff has
established the existence of a triable issue concerning one or more material
facts related to the causes of action or any defenses.

Accordingly, the Court DENIES summary judgment and adjudication.

ORDERS

1) Defendant

National Roofing Consultants, Inc.'s Motion for Summary Judgment or
Adjudication of Issues is DENIED.

2) NRC

is ordered to give notice of this Court's ruling.

IT IS SO ORDERED.

DATED: July 1, 2026

Tamara

Hall

Judge

of the Superior Court